

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MCS INDUSTRIES, INC., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD. AND MSC
MEDITERRANEAN SHIPPING COMPANY SA, *Respondents*.

DOCKET NO. 21-05

Served: March 4, 2022

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER ON PROPOSED REVISED SCHEDULE AND DISCOVERY NOTICE

On February 25, 2022, Respondent MSC Mediterranean Shipping Company SA (“MSC Mediterranean Shipping”) filed a notice and update on joint status report, addressing discovery of documents in Switzerland, and attaching a legal opinion from Swiss counsel. On February 28, 2022, the parties filed a joint status report with a proposed schedule.

Additional information is required prior to requesting discovery from Switzerland and before revising the scheduling order. Any request to Switzerland will need to identify the type of discovery requested – for example, the production of documents and/or the deposition of witnesses. In addition, the request needs to identify the nature of the proceeding and a summary of the evidence to be obtained. The parties shall prepare a proposed request that addresses these requirements.

There are multiple ways to request approval from authorities in Switzerland to conduct discovery, including asking a Swiss judge to oversee it, requesting a diplomatic officer or consular agent to take evidence, or for approval of the appointment of a Commissioner. It appears that the parties are requesting to have the Swiss authorities oversee the taking of evidence. The parties should consider whether it would be more efficient to have the undersigned appoint, under Article 17, a Commissioner or Commissioners to oversee the taking of the evidence and application for authorization with the relevant Swiss authorities. The parties should also discuss which canton will receive the request and how the documents will be translated into the appropriate language. The parties should submit a joint status report that clarifies the procedure the parties are requesting and attaches a proposed request.

The parties should also review the protective order issued in this case to ensure that it meets with Switzerland’s requirements, including the European Union General Data Protection Regulation and the Swiss Federal Act on Data Protection. The parties should indicate in the joint

status report whether any protective order amendments are necessary and if so, should propose an amended protective order.

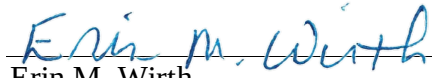
The schedule proposed by the parties is extended due to the uncertainty surrounding the timing of receipt of the discovery identified above. It is preferable, therefore, to reserve the issue of the schedule until further information is available.

For the reasons outlined above, it is hereby **ORDERED** that:

(1) Complainant serves second round of discovery and provides documents from Expeditors International by March 7, 2022;

(2) the parties provide a joint status report addressing the status of discovery, the issues above, and a proposed request for overseas discovery by April 4, 2022; and

(3) the parties continue to exchange discovery in an expeditious fashion.


Erin M. Wirth
Chief Administrative Law Judge